

SnowyKim Workplace Investigation Procedure Guide

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Policy Owner: Human Resources

Access: HR Staff and HR Administrators

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1. Purpose

This guide establishes a consistent process for reviewing workplace complaints involving:

- Harassment
- Discrimination
- Retaliation
- Bullying
- Conflicts of interest
- Workplace misconduct
- Policy violations
- Unauthorized access or disclosure
- Threats or safety concerns

Investigations must be prompt, impartial, appropriately documented, and limited to individuals with a legitimate need to know.

2. Receiving a Report

When a complaint is received, Human Resources should document:

- Date and method of report
- Reporting person
- Individuals involved
- Summary of the allegation
- Relevant dates and locations
- Potential witnesses
- Available documents or messages
- Immediate safety or retaliation concerns

HR should acknowledge the report and explain that confidentiality will be protected as much as reasonably possible, but cannot be guaranteed.

3. Initial Assessment

HR should determine:

- Whether the allegation falls within company policy
- Whether immediate action is needed
- Whether there is a potential conflict of interest
- Whether Legal, Security, or an external investigator should be involved
- Whether evidence may need to be preserved
- Whether interim measures are appropriate

Interim measures may include:

- Temporary reporting changes
- Schedule or location changes
- Restricted system access
- No-contact instructions
- Paid administrative leave
- Additional workplace security

Interim action must not be used to punish the reporting employee.

4. Assigning the Investigator

The investigator must be reasonably impartial and qualified.

An investigator should not:

- Report to a person involved in the complaint
- Have a close personal relationship with an involved party
- Have participated in the alleged conduct
- Have already reached a conclusion
- Have another material conflict of interest

SnowyKim may use an external investigator for sensitive, executive-level, legal, or highly complex matters.

5. Investigation Plan

Before beginning interviews, the investigator should define:

- Allegations being reviewed
- Relevant policies
- Individuals to interview
- Documents and systems to review
- Expected timeline
- Confidentiality requirements
- Evidence-preservation needs

The scope may be updated if new relevant information emerges.

6. Evidence Collection

Relevant evidence may include:

- Emails
- Messages
- Documents
- Calendar records
- Policies
- Performance records
- Access logs
- Security records
- Photographs
- Video or audio, where lawfully obtained
- Prior related complaints
- Witness statements

Only authorized personnel may access restricted systems or records.

Investigators must not request more personal, medical, or unrelated information than necessary.

7. Interviews

The investigator should generally interview:

1. The reporting person
2. Relevant witnesses
3. The person accused of misconduct
4. Additional individuals identified during the investigation

Interview questions should be:

- Neutral
- Open-ended
- Relevant to the allegation
- Free of assumptions
- Consistent with the witness's role

Examples include:

- What happened?
- When and where did it occur?
- Who was present?
- What was said or done?
- Are there messages or documents related to this?

- Did you report it to anyone?
- Is there anyone else we should speak with?

The investigator should not promise a particular outcome.

8. Interview Documentation

Interview notes should include:

- Date and participants
- Questions discussed
- Factual statements
- Relevant quotations
- Documents identified
- Follow-up items
- Any observed inconsistencies

Notes should avoid unnecessary personal opinions.

Witnesses may be reminded not to retaliate or interfere with the investigation. They should not be instructed to remain silent in a way that interferes with legally protected activity.

9. Credibility Assessment

When accounts conflict, the investigator may consider:

- Level of detail
- Internal consistency
- Consistency with other evidence
- Corroborating witnesses or documents
- Motive to misrepresent
- Whether the account changed materially
- Plausibility
- Direct knowledge

A credibility finding must not be based on stereotypes, protected characteristics, emotional presentation, or whether a person delayed reporting.

10. Findings

Unless another standard is required, SnowyKim investigations use the **preponderance of the evidence** standard.

This means determining whether it is more likely than not that the alleged conduct occurred.

Each allegation should be classified as:

- Substantiated
- Unsubstantiated
- Inconclusive
- Outside the scope of the investigation

An unsubstantiated allegation does not mean the report was knowingly false.

11. Investigation Report

The final report should include:

- Scope of investigation
- Allegations reviewed
- Relevant policies
- Individuals interviewed
- Evidence considered
- Key factual findings
- Credibility analysis where needed
- Conclusion for each allegation
- Unresolved issues
- Recommended follow-up, if requested

The report should distinguish facts, allegations, and conclusions.

Legal conclusions should be reserved for qualified legal counsel.

12. Corrective and Preventive Action

HR and authorized decision-makers may consider:

- Coaching
- Training
- Written warning
- Reporting-line changes
- Access restrictions
- Performance management
- Suspension
- Termination
- Policy or process changes
- Workplace monitoring
- Team-level intervention

Corrective action should consider the seriousness of the conduct, available evidence, prior relevant conduct, consistency, and applicable law.

13. Communicating the Outcome

The reporting person should generally be informed that:

- The investigation is complete
- Appropriate action was taken when warranted
- Retaliation is prohibited
- Further concerns should be reported

The accused person should be informed of:

- Relevant findings
- Required corrective action
- Behavioral expectations
- Non-retaliation requirements

SnowyKim should not disclose confidential disciplinary details beyond what is appropriate.

14. Retaliation Monitoring

HR should monitor for potential retaliation after the investigation.

Possible warning signs include:

- Sudden schedule or assignment changes
- Exclusion from meetings
- Threats or hostility
- Reduced opportunities
- Negative treatment connected to participation
- Attempts to identify or punish witnesses

Follow-up check-ins may be scheduled with relevant individuals.

15. Investigation Records

Investigation records must be stored in a restricted HR or legal system.

Records may include:

- Original complaint
- Interview notes
- Evidence
- Investigator communications
- Final report
- Corrective-action documentation
- Follow-up notes

Investigation records should not be stored in an employee's general personnel file unless HR determines that a specific final document belongs there.

Access should be limited to assigned HR personnel, HR administrators, Legal, and other specifically authorized decision-makers.

16. Escalation

HR should immediately escalate matters involving:

- Imminent threats or violence
- Senior executives
- Significant legal exposure
- Widespread misconduct
- Criminal allegations
- Government inquiries
- Privileged legal issues
- Serious data-security incidents
- Potential evidence destruction

Emergency threats should be referred to emergency services and company Security as appropriate.

17. Questions

Questions should be directed to:

Human Resources

hr@snowykim-demo.com

Legal and Compliance

legal@snowykim-demo.com

Demonstration disclaimer: SnowyKim, its employees, systems, and procedures are fictional. This guide is intended for HR chatbot and retrieval testing and is not legal advice.